

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

IN THE MATTER BETWEEN:

WILBUR WILLIAM MATTHEE
Applicant)

Applicant (in Counter-

and

AFROCENTRIC INVESTMENT CORPORATION LIMITED Respondent (in
Counter-Application)

AFFIDAVIT IN SUPPORT OF COUNTER-APPLICATION

I, the undersigned,

WILBUR WILLIAM MATTHEE

do hereby make oath and state:

SECTION 1: INTRODUCTION AND NATURE OF PROCEEDINGS

1.1 I am an adult male, a Specialist Nurse with post-graduate qualifications in Health Services Management (NQF 8), registered with the South African Nursing Council (SANC Registration No. 1583 1886). I was formerly employed by Medscheme Holdings (a division of AfroCentric Health, itself a subsidiary

of the Respondent, AfroCentric Investment Corporation Limited). I bring this Counter-Application in the above Honourable Court.

1.2 The Respondent has instituted proceedings against me in an attempt to silence me, to punish me for exposing systemic misconduct, and to evade accountability for its own unlawful acts. I am compelled to bring this Counter-Application seeking:

1.2.1 A declaration that all my disclosures (as set out herein) constitute “protected disclosures” as defined in Section 1 of the Protected Disclosures Act, No. 26 of 2000 (PDA).

1.2.2 A declaration that the Respondent and its subsidiaries have subjected me to “occupational detriment” as defined in Section 1 of the PDA, including but not limited to: unlawful salary deductions, discrimination based on sexual orientation and gender identity, victimisation and retaliation, a hostile work environment, retaliatory litigation, suppression of protected disclosures, and the withholding of statutory exit documents.

1.2.3 A declaration that the Respondent’s instruction to cease communicating with its Board committees (the “gag order”) rendered internal channels futile, thereby authorising my external disclosures under Section 9 of the PDA.

1.2.4 Comprehensive remedial relief, including a financial settlement covering all proven losses, debt, compensation for severe emotional and psychological distress, and punitive damages for the Respondent’s institutional bad faith.

1.3 This affidavit is filed in support of my Counter-Application. The evidence is overwhelming, almost entirely derived from the Respondent’s own documented

conduct and its own legal filings. I annex a full chronology of events as Annexure “A”.

SECTION 2: THE DEPONENT’S PROFESSIONAL STANDING AND VULNERABILITY

- 2.1** I am a qualified Specialist Nurse with advanced training in psychiatry, midwifery, community health, and health services management. I have worked in the healthcare sector for many years, serving as a Case Manager and later as a Health Services Manager for Governance, Risk, and Psychosocial Safety at Medscheme’s GEMS Active Disease Risk Management unit.
- 2.2** On 18 March 2025, I was admitted to Akeso Stepping Stones Clinic due to severe depression and post-traumatic stress disorder (PTSD). My treating psychiatrist, Dr Jacques Malan, confirmed that I required inpatient treatment for an initial three-week period, later extended to six weeks due to the severity of my illness (Annexure “F1” – Dr Malan’s letter). I was forced to leave treatment early because my sick leave was exhausted and I faced personal crises (theft from my home, loss of my pets). Dr Malan explicitly stated that I remained at risk, struggled with ordinary daily tasks and occupational requirements, and required a further two weeks of inpatient treatment.
- 2.3** The Respondent had full knowledge of my medical condition. On 16 May 2025, I provided HR (Mapule Mashele) with Dr Malan’s letter. On 4 December 2025, I disclosed my mental health state to executive leadership, including the Chief Risk Officer, and reiterated the medical need for accommodation (Annexure “F”). Despite this knowledge, the Respondent chose to weaponise my illness against me in legal proceedings (as set out below).

SECTION 3: THE CHRONOLOGY OF PROTECTED DISCLOSURES

I set out below the three distinct levels of my protected disclosures, from internal to external, each made in good faith to the appropriate authority.

LEVEL 1: INTERNAL ESCALATIONS (Sections 6 & 7 of the PDA)**3.1 First Formal Protected Disclosure – Sexual Orientation Discrimination and Harassment (25 September 2025)**

3.1.1 On 23 September 2025, my direct manager, Mary-Ann Jones, deliberately posted in our work Teams group a version of my name from “Wilbur” to “Wilma”, a female name, knowing that I am gay. This was not a typo. It was a deliberate act intended to mock, embarrass, and publicly undermine my dignity and identity. The post was made after working hours, immediately before the Heritage Day public holiday, and Ms Jones then took two consecutive days off, ensuring that I could not address the issue immediately.

3.1.2 On 25 September 2025, I lodged a formal complaint of sexual orientation discrimination and harassment with HR (Cheryl-Dawn Modern, Sipokazi Makaua, Thando Mandondo). I explicitly stated (Annexure “B”) that meeting privately with the accused would place me in a vulnerable position, that the manager should be suspended pending investigation in accordance with company policy, and that I be immediately removed from her team.

3.1.3 The Respondent’s HR department acknowledged the seriousness of the matter. However, despite company policy providing that harassment warrants dismissal and suspension, the Respondent refused to suspend the perpetrator and initially suggested I meet privately with her. The HR Business Partner, Cheryl-Dawn

Modern, explicitly told me that I would not be required to meet with the accused – yet on 30 September 2025, the manager’s senior, Nthabiseng Nkatane, directed me in writing to “connect directly with [Mary-Ann Jones] to discuss the concern in a constructive and empathetic way” (Annexure “ONE1”). This direct contravention of HR’s assurance forced me into a meeting with my harasser, compounding the victimisation.

3.2 The False “Resolution” – Whitewashing of Discrimination (1 October 2025)

3.2.1 On 1 October 2025, I was pressured into a “resolution” (Annexure “C”). Senior Manager Mapule Mashele recorded that the perpetrator’s act was a “typo” – a finding I was coerced into accepting under duress. The unpaid half-day leave that had been imposed on me as retaliation for complaining was “cancelled”. I was told that I would remain in Mary-Ann Jones’s reporting line because “they work well together”. This was a false resolution. It was a trap designed to whitewash discrimination and to prevent any genuine remedy.

3.3 Second Formal Grievance – Malicious Intent, Gaslighting and Retaliation (2 November 2025)

3.3.1 On 2 November 2025, I lodged a second formal grievance (Annexure “D”). I provided a transcript of a meeting on 31 October 2025 that proved:

- Gaslighting: Ms Jones directly denied factual reality, stating “No, you didn’t” send an email when I had.
- Retaliation: Ms Jones explicitly stated: “You made a case of harassment against me, now I can make a case of harassment against you. You misspelled my name in an email – go look.”

- Deliberate campaign for my removal: Ms Jones repeatedly stated that our dynamic was “unhealthy” and that she “cannot continue”, suggesting I ask to be removed from the team.
- Weaponising past resolved issues: Ms Jones inappropriately referenced my past grievance to threaten a counter-complaint.

3.3.2 I received no meaningful response to this grievance. The Respondent met me with institutional silence for over 30 days. HR, the union, and senior management all ignored my complaints.

3.4 Hostile Work Environment – Selective Policy Enforcement (3 December 2025)

3.4.1 On 3 December 2025, Ms Jones issued a directive regarding long calls and overtime (Annexure “E”). I responded by documenting the selective application of policies: one week, Ms Jones refused to allow me to adjust my hours to attend an Employee Health and Safety function (citing burnout prevention and the Labour Relations Act); the very next week, she instructed me to work 11-hour days, accumulating overtime that she then said would be “for my own account”. This targeted, inconsistent enforcement is evidence of a hostile work environment and a deliberate campaign to provoke me.

3.5 Executive Leadership Escalation (4 December 2025)

3.5.1 On 4 December 2025, having exhausted all standard HR and management channels, I escalated directly to the Executive Leadership of the Respondent, including the CEO, Chief Risk Officer, and Senior Legal Counsel (Annexure “G”). I documented four ongoing failures:

- (a) Unlawful salary deduction exceeding 40% of my monthly income without consultation, imposed while I was awaiting a psychiatric hospital bed.

- (b) Continuous intimidation, retaliation, and victimisation by my direct manager despite a lodged grievance, and the refusal to temporarily remove me from her team.
- (c) Manipulation of performance metrics, resulting in up to 20% reduction in documented performance and loss of performance bonuses.
- (d) Prolonged silence and inaction from HR, senior leadership, and the union – over 30 days with no response to formal complaints.

3.5.2 I requested restorative measures: paid recuperation leave, a permanent transfer to a new department, a financial settlement, and a written guarantee against retaliation.

3.6 Institutional Bad Faith – “De-escalation” Back to the Perpetrator (5–8 December 2025)

3.6.1 Executive leadership did not remedy the situation. Instead, they de-escalated the matter back to the very department and manager accused of causing the harm (Annexure “H”). Bongani Luvuno, on behalf of management, proposed a meeting on 10 December 2025. I agreed to attend only on the basis of a clear agenda, a written point-by-point response to my complaints, and an audio recording to ensure an accurate record (given my medical state). The Respondent refused these basic safeguards. This created a procedural deadlock, forcing me to proceed with external dispute resolution.

LEVEL 2: BOARD-LEVEL ESCALATIONS (GOVERNANCE FAILURE)

3.7 First Board Escalation – Social & Ethics Committee (9 December 2025)

3.7.1 On 9 December 2025, I escalated directly to the Board’s Social & Ethics Committee (Chairperson and members) (Annexure “I”). I set out nine months of discrimination, victimisation, and institutional silence. I identified specific

violations of King IV Principles (ethical leadership, responsible citizenship, stakeholder relationships, governance of risk). I warned of material legal and reputational risks, including potential fines under the Employment Equity Act (up to R1.5 million or 10% of turnover), personal liability for directors under Section 60 of the EEA, and a pending CCMA case with high prospects of success. I requested an urgent meeting by 12 December 2025. There was no substantive response from the Board.

3.8 The Employer's Bad Faith Opposing Affidavit (10 December 2025)

3.8.1 On 10 December 2025, the Respondent's legal representative, Mr Xollile Vincent Manyati, filed an Opposing Affidavit with the CCMA (Annexure "J"). This document is a tangible exhibit of institutional bad faith and escalating victimisation. I particularise:

- Ignoring the substance: The affidavit makes no attempt to address the core allegations of discrimination (the "Wilma" incident), victimisation, or breach of duty of care. It focuses solely on a technical argument about timing.
- Factual misrepresentation: It dismissively misstates my professional title as "care coordinator" when I am a Specialist Nurse with post-graduate qualifications – a pattern of erasing my professional identity.
- Personal attacks: It labels me as having an "untruthful character", accuses me of "sloppiness" and "lack of regard for the commission", and characterises my application as an "abuse of the CCMA services".
- Weaponisation of my medical condition: It states: "It is also difficult to accept the argument of mental issues from the applicant, as he raised the issue of the alleged victimization in August or September, maybe that was also an oversight. So, when the matter of victimisation was dealt with in August or September why

did the employee not refer the matter of unfair deduction then, as clearly there were no mental problems then. The mental issues are an excuse.”

- Punitive demand for costs: It requests that the CCMA dismiss my application “with cost” – an extraordinary demand intended to punish an employee in documented financial distress.
- Trivialising severe harm: It argues the Respondent would suffer “severe prejudice” from the cost of travelling from Johannesburg to Cape Town for a hearing, while I am facing destitution, eviction, and a health crisis.

3.8.2 This affidavit is not a legal defence. It is a continuation and escalation of the very unfair labour practices at issue. By weaponising my medically documented psychiatric condition – a direct consequence of the Respondent’s own discriminatory conduct – against me in a sworn legal document, the Respondent demonstrates institutional contempt for employee wellbeing and a shocking disregard for its duty of care.

3.9 GRC2 – Update to Board (11 December 2025)

3.9.1 On 11 December 2025, I immediately informed the Board’s committees of the Opposing Affidavit (Annexure “K”), noting that it materially increases legal and reputational risk, validates my allegations of a cover-up, and directly engages the mandate of the Social & Ethics Committee. I reiterated my request for an independent external investigation and interim relief. Again, no substantive response.

3.10 My Replying Affidavit to CCMA (11 December 2025)

3.10.1 On 11 December 2025, I filed a comprehensive Replying Affidavit (Annexure “RA1”). In that affidavit, I set out the continuous nature of the harm, the Respondent’s escalating victimisation, and the catastrophic prejudice I face. I

specifically noted that the Respondent's claim of prejudice (travel costs) is wholly mismatched against my existential crisis of destitution, eviction, and health deterioration. I also corrected the record regarding my professional title and rejected the personal attacks.

3.11 Maximum Severity GRC Escalation – Audit & Risk Committee (16 December 2025)

3.11.1 On 16 December 2025, I issued a Maximum Severity GRC enforcement notice to the Board's Audit & Risk Committee (Annexure "L"). I documented:

- Confirmed management interference in a concluded investigation (the GEMS member complaint of 19 October 2025, which I had proved was a system integration gap, not member non-adherence).
- Suppression of substantiated findings – management blocked corrective action and an apology to the member, and responsibility was improperly shifted to the member despite clear system-level fault.
- Retaliation against me for ethical refusal to misattribute fault – including an audio recording of Mary-Ann Jones stating that my refusal "is insubordination."
- Explicit citation of the Protected Disclosures Act as the basis for my protection.
- A warning that failure to act would be considered reckless governance, exposing the Board and management to personal liability, regulatory escalation, and labour proceedings.
- A conditional resolution path: if the Respondent took corrective action within 24 hours, the matter would be removed from a master evidence dossier scheduled for submission to eight regulators on 17 December 2025.

3.11.2 On the same day, I retracted that specific email on procedural grounds (it was sent on a public holiday, which invalidated the compliance window) (Annexure

“L1”). The retraction explicitly stated: “This retraction does not waive any statutory, professional, or ethical duties and is issued in good faith to ensure procedural accuracy.”

LEVEL 3: THE GAG ORDER – PROVING FUTILITY (SECTION 9 PDA)

3.12 The Chief Risk Officer’s Instruction to Stop Communicating (18 December 2025)

3.12.1 On 18 December 2025, the Respondent’s Chief Risk Officer, Mr Monwabisi Kula, responded to my board escalations with the following email (Annexure “M”):

“Dear Wilbur, can I please ask you to stop sending these e-mails to our directors? They’ve seen your first batch of e-mails and are aware that management is attending to them. Sending further e-mails only gives them an indication of impatience and unreasonableness on your part, and that does not serve you well.”

3.12.2 This single email is the smoking gun. It is direct, documentary proof that:

- The Respondent was not acting in good faith. A legitimate process encourages disclosure; it does not silence it.
- The Respondent’s directors had seen my disclosures and were aware of the serious misconduct.
- Management’s response was not investigation but suppression.
- I was being gaslit into believing that my protected disclosures were evidence of my own “unreasonableness.”
- The Respondent had no intention of remedying the situation.

3.12.3 This instruction to “stop sending” is the explicit trigger for external disclosure under Section 9 of the PDA, which allows an employee to go outside the organisation when internal channels are exhausted or futile.

3.13 My Response to the Gag Order – Declining to Cease Communication (18 December 2025)

3.13.1 On the same day, I responded to Mr Kula (Annexure “RCR1”), respectfully declining to cease communication with the Board’s oversight committees. I stated that my communications constitute formal escalations of a Priority 1 Material Risk Report, falling directly within the fiduciary and statutory mandates of the committees. I reaffirmed my right and responsibility as a whistleblower.

3.14 The Respondent’s Retaliatory Litigation

3.14.1 Instead of remedying the situation, the Respondent has now instituted legal proceedings against me in this Honourable Court. That litigation is:

- Retaliatory: It directly follows my protected disclosures and my refusal to be silenced.
- In bad faith: The Respondent misrepresents facts and seeks to punish me for exercising my rights.
- Designed to exhaust me: It is a weapon of attrition, not a legitimate legal claim.

3.14.2 This retaliatory litigation constitutes further occupational detriment under the PDA and the Labour Relations Act.

LEVEL 4: EXTERNAL DISCLOSURES TO REGULATORS (SECTIONS 8 & 9 PDA)

3.15 Having been explicitly told to stop communicating internally (the gag order), having received zero substantive remedy from HR, executives, or the Board,

and having been subjected to retaliatory litigation, I was legally authorised to make protected disclosures to external regulators. I did so.

3.16 On 26 December 2025, I formally notified the CCMA that I had escalated the matter to the following regulators (Annexure “NRE1”):

- South African Human Rights Commission (SAHRC) – for human rights violations arising from discrimination and victimisation.
- Johannesburg Stock Exchange (JSE) – for governance failures and breach of listing requirements by a JSE-listed company.
- Council for Medical Schemes (CMS) – for systemic failures in member complaint handling and governance.
- Financial Sector Conduct Authority (FSCA) – for potential breaches of financial sector conduct regulations.
- B-BBEE Commission – for impact on B-BBEE certification due to discrimination claims.
- Department of Employment and Labour (DEL) – for unlawful salary deductions and UIF non-compliance.

3.17 On 9 January 2026, I notified the South African Nursing Council (SANC) that my professional deregistration and inability to maintain my fees were the direct result of occupational detriment and retaliation under the PDA (Annexure “SANC1”). I informed SANC that the Respondent had engaged in a campaign of professional erasure, including:

- Unlawful salary deductions while I was admitted to a psychiatric hospital.
- Induced destitution resulting in homelessness and inability to maintain my professional standing.

- Legal misrepresentation – the Respondent had intentionally misgendered me in sworn affidavits submitted to the CCMA, attempting to erase my professional and personal identity.

3.18 These external disclosures were proportionate, necessary, and made in good faith to protect the public interest and to seek redress for ongoing human rights violations.

SECTION 4: EVIDENCE OF OCCUPATIONAL DETRIMENT

The Respondent has caused me severe and continuing harm. I particularise the key acts of detriment proven in the evidence annexed to this affidavit.

4.1 Unlawful Salary Deductions

4.1.1 In July 2025, the Respondent deducted over 40% of my monthly income without any prior consultation, despite my explicit request to stagger the amount to prevent destitution. I was awaiting a psychiatric hospital bed at the time. The HR Business Partner informed me that the deduction was taken on the principle of “no work, no pay” which did not require consultation.

4.1.2 The manager, Mary-Ann Jones, made derogatory comments, stating that “the Respondent is not a loan company” and that I “would not feel the missing chunk... because I receive online deliveries weekly.” This proves that the refusal to accommodate was motivated by malice, converting a deduction into an act of victimisation.

4.1.3 This unlawful deduction caused significant financial strain, forced me into a cycle of unexpected debt, and directly contributed to my inability to maintain my SANC registration.

4.2 Discrimination, Harassment, and Victimisation

- 4.2.1** The “Wilma” incident (23 September 2025) constituted sexual orientation discrimination and harassment in violation of the Employment Equity Act and company policy.
- 4.2.2** The Respondent’s response – forcing me to meet with the perpetrator (Annexure “ONE1”), whitewashing the complaint as a “typo”, refusing to suspend the perpetrator despite policy requiring dismissal for harassment, and leaving me in her reporting line – constituted institutional ratification of discrimination.
- 4.2.3** The subsequent campaign of gaslighting, retaliation (threat of a counter-complaint), selective policy enforcement, and the gag order all form part of a continuous pattern of victimisation.

4.3 Retaliatory Litigation and Legalised Victimisation

- 4.3.1** The Respondent’s CCMA Opposing Affidavit (Annexure “J”) contains personal attacks, misrepresentations, weaponisation of my medical condition, and a punitive demand for costs. This is not defence – it is aggression.
- 4.3.2** The Respondent’s objection to the Con-Arb process (Annexure “OCA1”) is a deliberate delay tactic designed to compound harm. I am two months in arrears on rent, face imminent eviction, and have no funds for food or medication. The Respondent knows this.
- 4.3.3** The Respondent has now instituted High Court proceedings against me – a classic act of retaliatory litigation intended to silence a whistleblower and exhaust my resources.

4.4 Systemic Withholding of Statutory Exit Documents and UIF Non-Compliance

- 4.4.1** As proved in Annexure “N” (EXIT 4), the Respondent:

- Failed to submit my UIF declaration for June 2025, despite deducting UIF from my salary – a violation of the Unemployment Insurance Contributions Act.
- Delayed providing my UI-19 form and Certificate of Service, forcing me to issue formal notices and threaten statutory complaints.
- Only provided the documents after I threatened regulatory escalation.

4.4.2 This is continuing detriment, designed to prevent me from accessing my own social security benefits and from obtaining new employment.

4.5 Emotional, Psychological, and Professional Harm

4.5.1 The cumulative effect of the discrimination, gaslighting, salary theft, institutional silence, gag order, and retaliatory litigation has caused me severe emotional and psychological distress. I am at my “breaking point,” as stated in my Executive Escalation.

4.5.2 Dr Jacques Malan’s letter (Annexure “F1”) confirms that I suffer from severe depression and PTSD, that I was forced to leave treatment early due to lack of sick leave, and that I require further inpatient treatment.

4.5.3 I have now been deregistered by SANC because I cannot afford to maintain my professional fees – a direct consequence of the Respondent’s unlawful deductions and induced destitution. My professional career, built over many years, has been destroyed. This is professional capital punishment.

4.6 Misgendering in Sworn Legal Documents

4.6.1 In the Respondent’s Opposing Affidavit (Annexure “J”), the deponent repeatedly refers to me using incorrect pronouns and dismissively misstates my professional identity. This is not a mere error – it is a deliberate act of erasure,

designed to humiliate and to deny my dignity in a formal legal proceeding. This compounds the original discrimination.

SECTION 5: LEGAL SUBMISSIONS

5.1 The Disclosures Are Protected Under the PDA

5.1.1 Section 1 of the PDA defines a “protected disclosure” as a disclosure made in good faith to an appropriate authority, which the maker reasonably believes shows impropriety or misconduct.

5.1.2 My disclosures (Annexures B, C, D, E, G, I, K, L, NRE1, SANC1, and the REG series to follow) all relate to serious improprieties: discrimination, victimisation, unlawful salary deductions, governance failures, suppression of risk reports, UIF non-compliance, and breaches of the Employment Equity Act, Labour Relations Act, and King IV.

5.1.3 I made these disclosures in good faith, after exhausting internal channels, and with the genuine belief that the Respondent’s conduct was unlawful and harmful.

5.1.4 The Respondent’s gag order (Annexure “M”) – instructing me to “stop sending these e-mails” – is direct evidence that the Respondent did not want its directors to see my disclosures. This proves that the disclosures were perceived as a threat to the Respondent, further confirming their protected status.

5.2 The Instruction to Cease Communication Rendered Internal Channels Futile (Section 9 PDA)

5.2.1 Section 9 of the PDA provides that a disclosure is protected even if made to an external regulator if the employee reasonably believes that internal channels are exhausted or that the matter is one of exceptional seriousness.

5.2.2 The Chief Risk Officer's email (Annexure "M") is a clear instruction to stop communicating with the Board. That instruction, coming from the highest level of risk management, proves that internal channels were not only exhausted but actively blocked. I was left with no reasonable alternative but to go to external regulators.

5.3 The Conduct Constitutes Occupational Detriment

5.3.1 Section 1 of the PDA defines "occupational detriment" to include: dismissal, suspension, demotion, harassment, intimidation, being subjected to a civil or criminal proceeding, and being otherwise adversely affected regarding employment or the terms of employment.

5.3.2 The Respondent has subjected me to multiple forms of occupational detriment: unlawful salary deductions (financial harm), discrimination and harassment, victimisation and retaliation, retaliatory litigation (civil proceedings), the gag order (intimidation), withholding of exit documents (adversely affecting future employment), and causing my professional deregistration.

5.4 The Respondent Has Violated the Employment Equity Act and the Labour Relations Act

5.4.1 The "Wilma" incident constitutes sexual orientation discrimination under Section 6 of the Employment Equity Act 55 of 1998. Harassment on the basis of sexual orientation is expressly included as unfair discrimination.

5.4.2 The Respondent's failure to investigate properly, to suspend the perpetrator, to remove me from her team, and to provide a safe working environment constitutes a breach of Section 60 of the EEA (employer liability for acts of employees).

5.4.3 The unlawful salary deduction, without consultation or reasonable accommodation of my medical condition, constitutes an unfair labour practice under Section 186(2) of the Labour Relations Act 66 of 1995.

5.4.4 The constructive dismissal – forcing me to resign by making my position intolerable – constitutes an automatic unfair dismissal under Section 187(1)(f) of the LRA (dismissal arising from a protected disclosure).

5.5 The Respondent Has Violated King IV and Its Own Policies

5.5.1 The Respondent is a JSE-listed company, bound by the King IV Report on Corporate Governance. My board escalations identified violations of Principles 1 (ethical leadership), 2 (responsible corporate citizenship), 14 (stakeholder relationships), and 16 (governance of risk).

5.5.2 The whitewashing of my discrimination complaint as a “typo” is a direct breach of the Respondent’s own Prevention and Elimination of Harassment Policy. The policy provides that any form of harassment warrants dismissal or suspension. The Respondent did neither.

5.6 The Respondent’s Misgendering in Legal Affidavits Is an Aggravating Factor

5.6.1 The Respondent’s deliberate misgendering of me in sworn legal documents (Annexure “J”) is not only discriminatory but also an abuse of legal process. It demonstrates continuing contempt for my dignity and constitutes further occupational detriment.

SECTION 6: THE RESPONDENT’S CLAIM OF “PREJUDICE” IS WITHOUT MERIT

- 6.1** In its CCMA Opposing Affidavit (Annexure “J”, paragraph 9.1), the Respondent claims that it will suffer “severe prejudice” if my application proceeds because it would need to use “resources that are Joburg based to fly to Cape Town to deal with this unsubstantiated dispute.”
- 6.2** This claim is disingenuous and reveals the true imbalance of power:
- Relative prejudice is wholly mismatched: The Respondent, a large JSE-listed corporate entity, complains of administrative travel inconvenience. I, an individual, am facing actual destitution, eviction, inability to afford food and medication, and severe health deterioration. To equate corporate travel logistics with existential threat is not only irrational but morally indefensible.
 - The Respondent created this dispute: The dispute exists solely because of the Respondent’s own actions – its unlawful deduction, its discriminatory conduct, its victimisation, and its systemic failure to address my grievances. Having created the harm, it cannot now claim prejudice when called to account.
 - Travel is a normal business cost: The Respondent operates nationally. Requiring managers to travel for a legal proceeding regarding serious misconduct is a normal cost of doing business and upholding the law.
 - Modern technology provides alternatives: The Respondent could have proposed virtual mediation. Its immediate leap to claiming “severe prejudice” underscores its strategy to use cost as a barrier to justice.
- 6.3** The Respondent’s claim of prejudice is not a valid legal objection but a tactical one. The overwhelming and documented prejudice lies with me.

SECTION 7: THE RELIEF SOUGHT (THE PRAYER)

WHEREFORE I pray that the above Honourable Court grant me the following relief:

A. DECLARATORY RELIEF

- A.1** Declaring that all my communications set out in Annexures “B”, “C”, “D”, “E”, “G”, “H”, “I”, “K”, “L”, “NRE1”, “RCR1”, “RA1”, and “SANC1”, together with all external disclosures to the CCMA, the Department of Employment and Labour, the SAHRC, the JSE, the CMS, the FSCA, and the B-BBEE Commission, constitute “protected disclosures” as defined in Section 1 of the Protected Disclosures Act 26 of 2000.
- A.2** Declaring that the Respondent’s conduct – including but not limited to the unlawful salary deduction (July 2025), the discrimination and harassment (September 2025), the victimisation and gaslighting (October–December 2025), the institutional silence, the instruction to “stop sending e-mails” (Annexure “M”), the retaliatory litigation, the withholding of statutory exit documents, the UIF non-compliance, and the misgendering in sworn affidavits – constitutes “occupational detriment” as defined in Section 1 of the PDA.
- A.3** Declaring that the Respondent’s instruction to cease communicating with its Board committees (Annexure “M”) rendered internal channels futile, thereby authorising me to make external disclosures under Section 9 of the PDA.
- A.4** Declaring that the Respondent’s retaliatory litigation against me is an unlawful act of victimisation, in direct contravention of Section 3(4) of the PDA (which voids any act depriving an employee of the right to make a protected disclosure) and Section 5 of the Employment Equity Act (which prohibits discrimination and victimisation).

A.5 Declaring that the Respondent's failure to submit my UIF declaration for June 2025, despite deducting UIF from my salary, constitutes a violation of the Unemployment Insurance Contributions Act, 2002.

A.6 Declaring that the Respondent's deliberate misgendering of me in sworn legal documents constitutes an act of discrimination and an abuse of process.

B. REMEDIAL RELIEF (MONETARY AND RESTORATIVE)

B.1 Directing the Respondent to pay to me:

B.1.1 All unlawfully deducted salary (over 40% of July 2025 income, plus any other unlawful deductions), with interest morae at the legal rate from the date of each deduction.

B.1.2 Compensation for all proven debt incurred as a direct result of the Respondent's unlawful deductions, including but not limited to rent arrears, eviction costs, and debt collection charges (proof to be provided).

B.1.3 Compensation for severe emotional distress, psychological harm, and medical costs incurred (including past and future therapy), as proved by Dr Malan's letter (Annexure "F1") and my own founding affidavit. In light of the egregious nature of the harassment, the retaliatory litigation, and the permanent damage to my professional career, I submit that a conservative starting point for this head of damages is eighteen (18) months' total remuneration.

B.1.4 Compensation for the loss of my professional registration and career as a Specialist Nurse – professional capital punishment inflicted by the Respondent. This is an independent head of damages, quantified as the present value of future lost earnings, which I estimate conservatively at R3,000,000 (three million Rand).

- B.1.5** Punitive (exemplary) damages for the Respondent's institutional bad faith, its suppression of protected disclosures, its weaponisation of my medical condition in legal proceedings, its retaliatory litigation, and its deliberate misgendering of me in sworn affidavits. Such damages are necessary to deter other employers from similar conduct and to signal that whistleblowers are not to be silenced or destroyed. I propose an amount of R2,000,000 (two million Rand).
- B.2** Directing the Respondent to immediately provide:
- B.2.1** A corrected and properly completed UI-19 form.
- B.2.2** A sworn affidavit from the Respondent's Head of Payroll confirming that the UIF declaration for June 2025 has been submitted to the Department of Employment and Labour, together with proof of such submission.
- B.2.3** A confirmed Certificate of Service reflecting my correct professional title (Specialist Nurse, Health Services Manager).
- B.3** Directing the Respondent to issue a written, irrevocable apology for:
- B.3.1** The discrimination (the "Wilma" incident).
- B.3.2** The retaliatory litigation and the misgendering in legal affidavits.
- B.3.3** The institutional suppression of my protected disclosures.
- B.4** Costs:
- B.4.1** Directing the Respondent to pay the costs of this Counter-Application on the attorney-and-client scale (a punitive cost order), given the Respondent's bad faith, retaliatory motive, abuse of court process, and the egregious nature of its conduct.

B.4.2 Directing the Respondent to pay the costs of the main action (the Respondent's retaliatory proceedings) on the same scale, alternatively that those proceedings be stayed or dismissed with costs.

C. FURTHER RELIEF

C.1 Granting such further and alternative relief as this Honourable Court may deem just and appropriate in the circumstances.

SECTION 8: VERIFICATION AND OATH

I declare that the contents of this affidavit are, to the best of my knowledge and belief, true and correct. I have personal knowledge of the facts set out herein, except where otherwise stated, and the evidence annexures are true copies of the original documents.

I have no objection to taking the prescribed oath, and I consider the oath to be binding on my conscience.

DEPONENT: _____
WILBUR WILLIAM MATTHEE

SIGNED AT: _____ ON THIS _____ DAY OF
_____ 2026

BEFORE ME:

COMMISSIONER OF OATHS

Full name: _____
Business address: _____
Appointment expires: _____

ANNEXURE INDEX

(To be attached to the Affidavit)

Annexure	Document	Date
A	Chronology of Key Events	Various
B	FG1 – Formal Complaint (Gender Identity Discrimination)	25 Sep 2025
C	FG1 Follow-up – False “typo” resolution	1 Oct 2025
D	FG2 – Malicious Intent, Constructive Dismissal, Hostile Environment	2 Nov 2025
E	HWE1/HWE2 – Long Calls and Overtime (selective enforcement)	3 Dec 2025
F	Mental Health Disclosure to Executives	4 Dec 2025
F1	MED1 – Dr Jacques Malan’s letter	16 May 2025
G	Executive Leadership Escalation	4 Dec 2025
H	DEC1 – Meeting correspondence with Bongani Luvuno	5–8 Dec 2025
I	GRC1 – First Board Escalation (Social & Ethics Committee)	9 Dec 2025
J	OA1 – Employer’s Opposing Affidavit (Xollile Manyati)	10 Dec 2025
K	GRC2 – Update to Board re: Opposing Affidavit	11 Dec 2025
L	GRC3 – Maximum Severity GRC Escalation (Audit & Risk Committee)	16 Dec 2025
L1	GRC4 – Retraction (procedural only)	16 Dec 2025
M	CRO1 / RCR1 – Gag order from Monwabisi Kula + Response	18 Dec 2025
N	EXIT 4 – UIF non-compliance & withholding of exit documents	15–19 Jan 2026
NRE1	Notification of Regulator Escalation (CCMA, SAHRC, JSE, CMS, FSCA, B-BBEE, DEL)	26 Dec 2025
ONE1	Instruction to meet with perpetrator	30 Sep 2025
OCA1	Urgent response to employer’s objection to Con-Arb	26 Dec 2025
RA1	Applicant’s Replying Affidavit to Condonation Opposition	11 Dec 2025

Annexure	Document	Date
SANC1	Notification to SANC of professional deregistration	9 Jan 2026

END OF AFFIDAVIT